

1 **SENATE FLOOR VERSION**

2 April 22, 2025

3 COMMITTEE SUBSTITUTE  
4 FOR ENGROSSED  
5 HOUSE BILL NO. 1095

By: Hildebrant, Adams, Woolley,  
and Townley of the House

6 and

7 Gillespie of the Senate

8  
9 An Act relating to firearms; creating the Municipal  
10 Carry Act; providing short title; amending 21 O.S.  
11 2021, Section 1277, which relates to the unlawful  
12 carry of firearms; modifying scope and providing an  
13 exception to certain prohibited act; clarifying scope  
14 of lawful carry for certain individuals; authorizing  
15 certain carry by judges, elected officials, and  
16 designated employees of a municipality under certain  
17 circumstances; providing restrictions; construing  
18 provision; updating statutory language and  
19 references; providing for noncodification; and  
20 providing an effective date.

21  
22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. NEW LAW A new section of law not to be  
24 codified in the Oklahoma Statutes reads as follows:

25 This act shall be known and may be cited as the "Municipal Carry  
26 Act".

27 SECTION 2. AMENDATORY 21 O.S. 2021, Section 1277, is  
28 amended to read as follows:

29 Section 1277.

1 UNLAWFUL CARRY IN CERTAIN PLACES

2 A. It shall be unlawful for any person, including a person in  
3 possession of a valid handgun license issued pursuant to the  
4 provisions of the Oklahoma Self-Defense Act, to carry any concealed  
5 or unconcealed firearm into any of the following places:

6 1. Any ~~structure~~, building, or office space which is owned or  
7 leased by a city, town, county, or state ~~or federal~~ governmental  
8 authority for the purpose of conducting business with the public.  
9 However, the governing body of a city or town may authorize the  
10 concealed carry of handguns into any building or office space that  
11 is owned or leased by a city or town, except those places listed in  
12 paragraph 2 of this subsection;

13 2. Any courthouse, courtroom, prison, jail, detention facility,  
14 or any facility used to process, hold, or house arrested persons,  
15 prisoners, or persons alleged delinquent or adjudicated delinquent,  
16 except as provided in Section 21 of Title 57 of the Oklahoma  
17 Statutes;

18 3. Any public or private elementary or public or private  
19 secondary school, except as provided in subsections C and D of this  
20 section;

21 4. Any publicly owned or operated sports arena or venue during  
22 a professional sporting event, unless allowed by the event holder;

23 5. Any place where gambling is authorized by law, unless  
24 allowed by the property owner;

1       6. Any other place specifically prohibited by law; and

2       7. Any property set aside by a county, city, town, public trust  
3 with a county, city, or town as a beneficiary, or state governmental  
4 authority for an event that is secured with ~~minimum security~~ minimum  
5 security provisions. For purposes of this paragraph, a ~~minimum-~~  
6 ~~security~~ minimum security provision consists of a location that is  
7 secured utilizing the following:

- 8           a. a metallic-style security fence that is at least eight  
9               (8) feet in height that encompasses the property and  
10              is secured in such a way as to deter unauthorized  
11              entry,
- 12           b. controlled access points staffed by a uniformed,  
13              commissioned peace officer, and
- 14           c. a metal detector whereby persons walk or otherwise  
15              travel with their property through or by the metal  
16              detector.

17       B. It shall be lawful for a person to carry a concealed or  
18 unconcealed firearm on the following properties:

19       1. Any property set aside for the use or parking of any  
20 vehicle, whether attended or unattended, by a city, town, county, or  
21 state ~~or federal~~ governmental authority;

22       2. Any property set aside for the use or parking of any  
23 vehicle, whether attended or unattended, which is open to the  
24 public, or by any entity engaged in gambling authorized by law;

1        3. Any property adjacent to a ~~structure,~~ building or office  
2 space in which concealed or unconcealed weapons are prohibited by  
3 the provisions of this section;

4        4. Any property designated by a city, town, county, or state  
5 governmental authority as a park, recreational area, wildlife  
6 refuge, wildlife management area, or fairgrounds; provided, nothing  
7 in this paragraph shall be construed to authorize any entry by a  
8 person in possession of a concealed or unconcealed firearm into any  
9 ~~structure,~~ building, office space, or event which is specifically  
10 prohibited by the provisions of subsection A of this section;

11       5. Any property set aside by a public or private elementary or  
12 secondary school for the use or parking of any vehicle, whether  
13 attended or unattended; provided, however, the firearm shall be  
14 stored and hidden from view in a locked motor vehicle when the motor  
15 vehicle is left unattended on school property; and

16       6. Any public property set aside temporarily by a county, city,  
17 town, public trust with a county, city, or town as a beneficiary, or  
18 state governmental authority for the holder of an event permit that  
19 is without ~~minimum-security~~ minimum security provisions, as such  
20 term is defined in paragraph 7 of subsection A of this section;  
21 provided, the carry of firearms within ~~said~~ the permitted event area  
22 shall be limited to concealed carry of a handgun unless otherwise  
23 authorized by the holder of the event permit.

1        Nothing contained in any provision of this subsection or  
2 subsection C of this section shall be construed to authorize or  
3 allow any person in control of any place described in subsection A  
4 of this section to establish any policy or rule that has the effect  
5 of prohibiting any person in lawful possession of a handgun license  
6 or otherwise in lawful possession of a firearm from carrying or  
7 possessing the firearm on the property described in this subsection.

8        C. A concealed or unconcealed weapon may be carried onto  
9 private school property or in any school bus or vehicle used by any  
10 private school for transportation of students or teachers by a  
11 person who is licensed pursuant to the Oklahoma Self-Defense Act,  
12 provided a policy has been adopted by the governing entity of the  
13 private school that authorizes the carrying and possession of a  
14 weapon on private school property or in any school bus or vehicle  
15 used by a private school. Except for acts of gross negligence or  
16 willful or wanton misconduct, a governing entity of a private school  
17 that adopts a policy which authorizes the possession of a weapon on  
18 private school property, a school bus, or a vehicle used by the  
19 private school shall not be subject to liability for any injuries  
20 arising from the adoption of the policy. The provisions of this  
21 subsection shall not apply to claims pursuant to the Administrative  
22 Workers' Compensation Act.

23        D. Notwithstanding paragraph 3 of subsection A of this section,  
24 a board of education of a school district may adopt a policy

1 pursuant to Section 5-149.2 of Title 70 of the Oklahoma Statutes to  
2 authorize the carrying of a handgun onto school property by school  
3 personnel specifically designated by the board of education,  
4 provided such personnel either:

5 1. Possess a valid armed security guard license as provided for  
6 in ~~Section 1750.1 et seq. of Title 59 of the Oklahoma Statutes~~ the  
7 Oklahoma Security Guard and Private Investigator Act; or

8 2. Hold a valid reserve peace officer certification as provided  
9 for in Section 3311 of Title 70 of the Oklahoma Statutes.

10 Nothing in this subsection shall be construed to restrict  
11 authority granted elsewhere in law to carry firearms.

12 E. Notwithstanding the provisions of subsection A of this  
13 section, on any property designated as a municipal zoo or park of  
14 any size that is owned, leased, operated, or managed by:

15 1. A public trust created pursuant to the provisions of Section  
16 176 of Title 60 of the Oklahoma Statutes; or

17 2. A nonprofit entity,  
18 an individual shall be allowed to carry a concealed handgun but not  
19 openly carry a handgun on the property.

20 F. Any person violating the provisions of paragraph 2 or 3 of  
21 subsection A of this section shall, upon conviction, be guilty of a  
22 misdemeanor punishable by a fine not to exceed Two Hundred Fifty  
23 Dollars (\$250.00). A person violating any other provision of  
24 subsection A of this section may be denied entrance onto the

1 property or removed from the property. If the person refuses to  
2 leave the property and a peace officer is summoned, the person may  
3 be issued a citation for an amount not to exceed Two Hundred Fifty  
4 Dollars (\$250.00).

5 G. No person in possession of a valid handgun license issued  
6 pursuant to the provisions of the Oklahoma Self-Defense Act or who  
7 is carrying or in possession of a firearm as otherwise permitted by  
8 law or who is carrying or in possession of a machete, blackjack,  
9 loaded cane, hand chain, or metal knuckles shall be authorized to  
10 carry the firearm, machete, blackjack, loaded cane, hand chain, or  
11 metal knuckles into or upon any college, university, or technology  
12 center school property, except as provided in this subsection. For  
13 purposes of this subsection, the following property shall not be  
14 construed to be college, university, or technology center school  
15 property:

16 1. Any property set aside for the use or parking of any motor  
17 vehicle, whether attended or unattended, provided the firearm,  
18 machete, blackjack, loaded cane, hand chain, or metal knuckles are  
19 carried or stored as required by law and the firearm, machete,  
20 blackjack, loaded cane, hand chain, or metal knuckles are not  
21 removed from the motor vehicle without the prior consent of the  
22 college or university president or technology center school  
23 administrator while the vehicle is on any college, university, or  
24 technology center school property;

1        2. Any property authorized for possession or use of firearms,  
2 machetes, blackjacks, loaded canes, hand chains,    or metal knuckles  
3 by college, university,    or technology center school policy; and

4        3. Any property authorized by the written consent of the  
5 college or university president or technology center school  
6 administrator, provided the written consent is carried with the  
7 firearm, machete, blackjack, loaded cane, hand chain,    or metal  
8 knuckles and the valid handgun license while on college, university,     
9 or technology center school property.

10       The college, university,    or technology center school may notify  
11 the Oklahoma State Bureau of Investigation within ten (10) days of a  
12 violation of any provision of this subsection by a licensee. Upon  
13 receipt of a written notification of violation, the Bureau shall  
14 give a reasonable notice to the licensee and hold a hearing. At the  
15 hearing, upon a determination that the licensee has violated any  
16 provision of this subsection, the licensee may be subject to an  
17 administrative fine of Two Hundred Fifty Dollars (\$250.00) and may  
18 have the handgun license suspended for three (3) months.

19       Nothing contained in any provision of this subsection shall be  
20 construed to authorize or allow any college, university,    or  
21 technology center school to establish any policy or rule that has  
22 the effect of prohibiting any person in lawful possession of a  
23 handgun license or any person in lawful possession of a firearm,  
24 machete, blackjack, loaded cane, hand chain,    or metal knuckles from



1 possession of a firearm, machete, blackjack, loaded cane, hand  
2 chain, or metal knuckles in places described in paragraphs 1, 2, and  
3 3 of this subsection. Nothing contained in any provision of this  
4 subsection shall be construed to limit the authority of any college,  
5 university, or technology center school in this state from taking  
6 administrative action against any student for any violation of any  
7 provision of this subsection.

8 H. The provisions of this section shall not apply to the  
9 following:

10 1. Any peace officer or any person authorized by law to carry a  
11 firearm in the course of employment;

12 2. ~~District judges~~ Any district judge, associate district  
13 ~~judges and judge, or special district judges judge~~, who ~~are~~ is in  
14 possession of a valid handgun license issued pursuant to the  
15 provisions of the Oklahoma Self-Defense Act and whose ~~names appear~~  
16 name appears on a list maintained by the Administrative Director of  
17 the Courts, when acting in the course and scope of employment within  
18 the courthouses of ~~this state~~ the county that falls within the  
19 jurisdiction of the district judge, associate district judge, or  
20 special district judge;

21 3. ~~Private investigators~~ Any private investigator with a  
22 firearms authorization when acting in the course and scope of  
23 employment;

1        4. ~~Elected officials~~ Any elected official of a county, who ~~are~~  
2 is in possession of a valid handgun license issued pursuant to the  
3 provisions of the Oklahoma Self-Defense Act, may carry a concealed  
4 handgun when acting in the performance of his or her duties within  
5 the courthouses of the county in which he or she was elected. The  
6 provisions of this paragraph shall not allow the elected county  
7 official to carry the handgun into a courtroom;

8        5. The sheriff of any county may authorize certain employees of  
9 the county, who possess a valid handgun license issued pursuant to  
10 the provisions of the Oklahoma Self-Defense Act, to carry a  
11 concealed handgun when acting in the course and scope of employment  
12 within the courthouse in the county in which the person is employed.  
13 Nothing in the Oklahoma Self-Defense Act shall prohibit the sheriff  
14 from requiring additional instruction or training before granting  
15 authorization to carry a concealed handgun within the courthouse.  
16 The provisions of this paragraph and of paragraph 6 of this  
17 subsection shall not allow the county employee to carry the handgun  
18 into a courtroom, sheriff's office, adult or juvenile jail, or any  
19 other prisoner detention area; ~~and~~

20        6. The board of county commissioners of any county may  
21 authorize certain employees of the county, who possess a valid  
22 handgun license issued pursuant to the provisions of the Oklahoma  
23 Self-Defense Act, to carry a concealed handgun when acting in the  
24 course and scope of employment on county annex facilities or grounds

1 surrounding the county courthouse that fall within the jurisdiction  
2 of the county employees; and

3 7. Any municipal judge, who is in possession of a valid handgun  
4 license issued pursuant to the provisions of the Oklahoma Self-  
5 Defense Act, when acting in the course and scope of employment  
6 within the courthouses of the municipality that are within the  
7 jurisdiction of the municipal judge.

8 I. 1. Any elected official of a municipality or any municipal  
9 employee approved by the governing body of a municipality, who  
10 possesses a valid handgun license issued pursuant to the provisions  
11 of the Oklahoma Self-Defense Act, may carry a concealed handgun when  
12 acting in the performance of his or her official duties within  
13 municipal buildings that are within the jurisdiction of the elected  
14 official or municipal employee.

15 2. For purposes of this subsection, a firearm may not be  
16 present inside a firearm-prohibited location, which shall include:

17 a. any building or office space on municipally owned or  
18 leased property designated as a firearm-prohibited  
19 location by the municipality, municipal trust, or  
20 municipal authority, and

21 b. any police department, courthouse, courtroom, prison,  
22 jail, detention facility, or any facility used to  
23 process, hold, or house arrested persons, prisoners,  
24

1                   or persons alleged delinquent or adjudicated  
2                   delinquent.

3           3. Nothing in this subsection shall be construed to require an  
4 elected official or designated employee of the municipality to carry  
5 a firearm as a condition of employment or service with the  
6 municipality.

7           J. For the purposes of this section, "motor vehicle" means any  
8 automobile, truck, minivan, ~~sports~~ sport utility vehicle, or  
9 motorcycle, as defined in Section 1-135 of Title 47 of the Oklahoma  
10 Statutes, equipped with a locked accessory container within or  
11 affixed to the motorcycle.

12           SECTION 3. This act shall become effective November 1, 2025.

13 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY  
14 April 22, 2025 - DO PASS AS AMENDED BY CS  
15  
16  
17  
18  
19  
20  
21  
22  
23  
24